

		Here, plaintiff does not allege that Yen or Zhou had actual knowledge of the alleged defective tile. Instead, it is only alleged that Spirit General Contracting & Design, Inc. knew or should have known that the tile posed a serious risk of injury. Moreover, plaintiff does not allege that Yen or Zhou personally performed any of the remodeling work such that they might be liable for any work that was negligently performed. Under the facts alleged, the circumstances do not give rise to an affirmative duty owed by Yen or Zhou. In light of the above, the demurrer is SUSTAINED with 20 days leave to amend. Moving party to give notice.
7.	30-2025-01475570 Gutierrez vs. Westrux International, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories Defendant, Westrux International, Inc. (“Defendant”), moves for an order compelling Plaintiff, Genaro Gutierrez (“Plaintiff”), to provide verified, full and complete responses to Form Interrogatories, Set One, and awarding monetary sanctions against Plaintiff in the amount of \$950. Defendant also moves for an order compelling Plaintiff to provide verified, full and complete responses to Demand for Production of Documents, Set One, and awarding monetary sanctions against Plaintiff in the amount of \$950. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b); 2031.300(a)-(b).) The motion to compel may be heard even if untimely responses are served after the motion is filed. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408 (“<i>Sinaiko</i>”).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); <i>Sinaiko, supra</i>, 148 Cal.App.4th at p. 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. (Code Civ. Proc. § 2031.300(a).) Here, on July 2, 2025, Defendant served Form Interrogatories, Set One, and Demand for Production of Documents, Set One, on Plaintiff via the email address from which Defendant had been receiving communication from Plaintiff. (Declaration of Carla M. Barcelos-Pettit, ¶ 3, Ex. A.) When no responses were received, on August 7, 2025, Defendant’s counsel wrote to Plaintiff, advising that his responses were overdue and providing additional time to provide full and complete verified responses and documents. (<i>Id.</i>, ¶ 4, Ex. B.) On September 18, 2025, Plaintiff emailed and advised Defendant’s counsel that they had been using the wrong email to communicate with him and that he had never received the initial discovery he was served with, such that on that same date, Defendant re-served the discovery of Plaintiff. (<i>Id.</i>, ¶ 6, Ex. C.) When no response was received, on October 22, 2025, Defendant’s counsel wrote to Plaintiff asking for the overdue response. (<i>Id.</i>, ¶ 7, Ex. D.) On October 31, Plaintiff asked for more time, and Defendant agreed, giving him until November 14, to serve verified full and complete

responses and to serve responsive documents. (*Id.*, ¶ 8, Ex. E.) As of the drafting of the motions, Defendant’s counsel had not received any response to the subject discovery from Plaintiff or any further communication from Plaintiff. (*Id.*, ¶ 9.) **Based on the foregoing, Defendant’s motion to compel responses to Form Interrogatories, Set One, and Demand for Production of Documents, Set One, is GRANTED.**

As a result of Plaintiff’s failure to serve responses to the Form Interrogatories and Demand for Production of Documents, Plaintiff has waived any objection to the interrogatories and requests, including one based on privilege or on the protection for work product. (Code Civ. Proc. §§ 2030.290(a) [interrogatories]; 2031.300(a) [inspection demands].)

Plaintiff is ORDERED to serve verified, objection-free, responses to Defendant’s Form Interrogatories, Set One, and Demand for Production of Documents, Set One, as well as to produce documents responsive to the Demand for Production of Documents, Set One, within 30 days.

The Court notes that the subject discovery requests were served by email on Plaintiff, who is self-represented. California Rules of Court, rule 2.253(b)(2) provides that “[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6.” Additionally, “[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; **however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.**” (California Rules of Court, rule 2.253(b)(3), emphasis added.) However, since Plaintiff appears to have acknowledged receipt of the subject discovery requests when they were re-served on September 18, 2025, the Court finds service sufficient. Nevertheless, the Court warns the parties to properly serve all documents. The failure to properly serve documents may result in a continuance or denial of a motion, as appropriate.

Sanctions

“[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories [or a demand for inspection], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290(c) [interrogatories]; 2031.300(c) [inspection demands].)

The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 139.)

Defendant requests a monetary sanction of \$950 for each of the two motions based on three (3) hours to prepare the motion and draft correspondence to Plaintiff and two (2) hours to appear for the hearing at \$175 per hour, as well as a \$15 electronic filing fee, and a \$60 court filing fee. (Declaration of Carla M. Barcelos-Pettit, ¶ 10.) In light of the Court’s ruling, the request for a monetary sanction is granted. Plaintiff has not shown that he has acted with substantial justification. While there is evidence that Plaintiff had a surgery in September, and that Plaintiff was looking for an attorney in October 2025, it has been over eight (8) months with no responses, and no indication of other circumstances that would render the imposition of a monetary sanction unjust.

As to the amount requested, these are straightforward motions that are nearly identical. As such, the Court finds that one (1) hour for each motion and one (1) hour to appear for the hearing at \$175 per hour to be reasonable, in addition to the \$75 electronic court filing fees for each motion. **The Court GRANTS a monetary sanction in the total amount of \$500 (\$175 x 2 hours +\$75 + \$75), or \$250 for each motion, against Plaintiff, Genaro Gutierrez, to be paid within 30 days of notice.**

Defendant to give notice.

8. 30-2025-01453654

**400 Spectrum Holdings
LLC vs. McSen Realty
Corp.**

- 1. Motion to Compel Answers to Form Interrogatories**
- 2. Motion to Compel Answers to Special Interrogatories**
- 3. Motion to Compel Production**
- 4. Motion to Deem Facts Admitted**
- 5. Case Management Conference**
- 6. Order to Show Cause re: Appointment of Referee**

Plaintiff 400 Spectrum Holdings LLC ("Landlord") seeks an order compelling Defendant Jie Charlene Yan ("Guarantor") to serve initial responses to Landlord's Special Interrogatories (Set One), Form Interrogatories – General (Set One), and Requests for Production of Documents (Set One) propounded on August 29, 2025 pursuant to CCP§§ 2030.290 and 2031.300, an order to deem the Requests for Admission (Set One) to Guarantor admitted pursuant to CCP§ 2033.280, and for an award of monetary sanctions in the amount of \$1,230.85 payable by Guarantor and Guarantor's attorney Hanzhang Xu, pursuant to CCP§§ 2030.290, 2031.300, 2033.280, and 2023.030(a) (the "Motion").

Pursuant to Cal. Code Civ. P. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response, the party propounding the interrogatories may move for an order compelling response to the interrogatories.

Pursuant to Cal. Code Civ. P. § 2031.300, if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party making the demand may move for an order compelling response to the demand.

Pursuant to Cal. Code Civ. P. § 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.

Finally, the Code of Civil Procedure requires the Court to issue sanctions against a party for its failure to respond to discovery. Cal. Code Civ. P. §§ 2030.290(c) (interrogatories); 2031.300(c) (requests for production); 2033.280(c) (requests for admission). The Court also has the power to impose monetary sanctions for abuse of the discovery process. Cal. Code Civ. P. § 2023.030(a).

In this instance, on August 29, 2025, Plaintiff's attorney propounded Special Interrogatories (Set One), Form Interrogatories – General (Set One), Requests for Production of Documents (Set One), and Requests for Admission (Set One) (collectively, the "Written Discovery Requests") on Guarantor by serving Attorney Xu electronically. (Decl. of Olinik¶4.) Thereafter, Mr. Xu requested extension, which was granted. Responses were due November 19, 2025. (Id¶5.). As of the date of the filing of this Motion, Landlord has not received any responses to the Written Discovery Requests. (Id¶6.)